

1.	22CV1598	EUGENE BROWN VS. JEFF BROWN ET AL
MOTION TO ENFORCE THE COURT'S PRIOR ORDERS AND ISSUING SANCTIONS		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Plaintiff/Cross-Defendant, Eugene Brown ("Plaintiff"), seeks an order to enforce the Court's prior Orders and for sanctions. Plaintiff alleges that Defendants have refused to comply with the Court's Order, most recently issued on January 8, 2026 (the "Order").

Plaintiff asserts that Defendant has refused to turn over to the Court-appointed manager/bookkeeper, Carolyn Holtz, or to anyone, any requested bank and credit card statements, all check registers and copies, and all financial receipts and documents, relating to Brown Building LLC, whether titled as such or otherwise, in the possession of or under the control of Defendant.

Defendant has also refused to turn over any documents necessary for the Court-appointed manager to open up a bank account in the name of Brown Building LLC (which does not presently exist). Plaintiff alleges that Defendant's failure to comply with the Order has caused Carolyn Holtz the inability to review the numbers, including income and expenses, for trial.

Plaintiff requests the following orders:

1. Direct Defendant and Bank of America to turn over to Carolyn Holtz, the Court-appointed manager/bookkeeper designated to manage the properties of Brown Building LLC, all bank and credit card statements, all check registers and copies, and all financial receipts and documents, relating to Brown Building LLC, including but not limited to Defendant's Bank of America bank account number 0023 3900 0992, which he titled "Brown Building"; and
2. Direct Defendant to provide to Carolyn Holtz copies of his driver license and either a credit card or a utility bill in his name, as well as any such further documentation required by a financial institution to allow Carolyn Holtz to establish a bank account on behalf of Brown Building LLC to recognize the complete authority of Carolyn Holtz, as Manager of such Company, to establish such account or accounts.

Plaintiff seeks sanctions in the amount of \$3,150 for Defendant's failure to comply with two prior Court Orders and necessitating the filing of motions and attending hearings. Plaintiff does not provide the statutory basis for the imposition of sanctions.

No opposition has been filed.

Plaintiff's request for the abovementioned orders is granted. The Court reserves jurisdiction over Plaintiff's request for sanctions subject to proof.

TENTATIVE RULING #1:

PLAINTIFF'S REQUEST FOR ORDERS IS GRANTED AS IDENTIFIED WITHIN THE TENTATIVE RULING. THE COURT RESERVES JURISDICTION OVER PLAINTIFF'S REQUEST FOR SANCTIONS SUBJECT TO PROOF.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.